

Company Reference Contracting Policy (Sample)

1. Payment

Payment must be completed by the Client within thirty (30) days of receipt of a valid invoice from the Provider. Late payments shall accrue interest at 1.5% per month.

2. Confidentiality

Each party shall keep the other party's Confidential Information secret and shall not disclose it to any third party for a period of five (5) years following disclosure.

3. Liability

The total aggregate liability of either party arising out of or related to this Agreement shall not exceed the fees paid by the Client in the preceding twelve (12) months, regardless of the form of action.

4. Termination

Either party may terminate this Agreement for convenience upon thirty (30) days' prior written notice to the other party.

5. Warranty

The Provider warrants that all services will be performed in a professional and workmanlike manner consistent with generally accepted industry standards.

6. Indemnity

Each party shall indemnify, defend, and hold harmless the other party from and against any third-party claims arising from its gross negligence or willful misconduct.

7. Governing Law

This Agreement shall be governed by and construed in accordance with the laws of the State of Delaware, without regard to its conflict of laws principles.

8. Insurance

The Provider shall maintain commercial general liability insurance with minimum coverage of \$1,000,000 per occurrence throughout the term of this Agreement.

9. Dispute Resolution

Any dispute arising out of or relating to this Agreement shall first be submitted to good-faith negotiation between the parties' senior representatives before either party may pursue litigation.

10. Data Protection

Each party shall comply with all applicable data protection and privacy laws and shall implement reasonable technical and organizational measures to protect personal data processed under this Agreement.